

Legal Licensing

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Legal and licensing detail

1. Second-hand dealer licence (NSW Fair Trading) [VERIFIED, page updated 1 Sep 2026]

Law: Pawnbrokers and Second-hand Dealers Act 1996; Regulation 2026 (replaced the 2021 Regulation; clause numbers may differ from older sources).

Who needs one: anyone running a business that buys, sells or exchanges prescribed second-hand goods. Prescribed goods include electronic goods, jewellery/precious metals, musical instruments, sporting goods, towable watercraft, portable powered tools, car accessories.

Not needing one: items not designed to be portable; video games/computer games; motorised mobility aids; whitegoods (microwaves, fridges, washing machines); anyone operating under another authority (e.g. motor dealers); fundraising appeals; auctioneers; and anyone who will "engage in recycling and rubbish collection programs".

Note: the Fair Trading page lists video games as exempt; whether game consoles are covered should be confirmed.

Fees (2026-27, VERIFIED):

Term	New licence	Renewal	Restore
1 year	\$692	\$500 (\$494 online)	\$562
3 years	\$1,574	\$1,382 (\$1,376 online)	\$1,444
5 years	\$2,456	\$2,264 (\$2,258 online)	\$2,326

Processing fee (\$251 new) is non-refundable. Fees may rise with CPI each 1 July.

Eligibility: 18+; fit and proper person (financial and police checks); not disqualified. For a corporation: the corporation and each director must be fit and proper. Assessment aims for 30 days; you can't trade prescribed goods while the application is pending.

Applying: Application form via Service NSW centre or businesslicensing@customerservice.nsw.gov.au.
Questions: 13 32 20.

Obligations once licensed:

- Notify Fair Trading of all NSW premises used for business and for storing goods.
- Display licence name/number/category; "information may be furnished to police" sign; "right to claim goods" sign where the public has access.
- Check supplier identity and get a signed ownership statement with a detailed description.
- Keep electronic records (approved software) for 3 years; send records of prescribed goods to NSW Police within 3 days.
- Record buyer name/address for sales of \$100 or more; record every sale by close of business that day.
- Hold regulated goods for 14 days; goods cannot be altered until the hold ends, and must stay on notified premises. (Matters a lot for a refurb business; ask Fair Trading how wiping/repair fits.)

- Display contract/stock numbers on goods.
- Police can require you to hold suspected stolen goods for 56 days (extendable).
- Record phone IMEI and WLAN MAC addresses (esp. for pawn records; see Fair Trading MAC guide).
- 12 or more demerit points in 3 years can lead to a show-cause notice for revocation.

Exemptions: An applicant can apply to Fair Trading for an exemption from specific provisions: licensing.exemptions@customerservice.nsw.gov.au (form on the Fair Trading page).

Recycling-program carve-out: The earlier 2021 Regulation said the Act doesn't apply to acts connected with conducting a recycling or rubbish collection program, selling goods collected in one, or contracting to give someone ownership of goods collected in one. Whether a private refurb operation is a "program" is not defined in anything I found. Get Fair Trading's answer in writing.

2. Licence-sharing with an employer or related business

- A licence is held by an individual, partnership or corporation, not a trading name. For "Dubbo eWaste" to be covered, it must be operated by the licensed entity, with the shed notified as premises.
- Unverified: whether Avance, or any related business, holds a licence.
- Risks to discuss with that business: its licence/demerit exposure, insurance, record-keeping duties across a second site, and conflict of interest.

3. Council planning

- Home occupation / home business / home industry are defined in the NSW Standard Instrument. A home business can't involve retail sale or display of goods not produced at the dwelling, other than online, nor interfere with amenity (noise, waste products, traffic generation), exceed signage and floor-area limits, or employ beyond the allowed number of non-residents.
- Public open days with walk-in drop-offs and sales likely exceed this. A development application for another land use may be required.
- Zoning of the property: unconfirmed. Nearby Boundary Road land includes R5, R2 and R1 with active planning proposals.
- Section 143 of the POEO Act (sending waste to a place that can't lawfully take it) also depends on the site being lawful under planning.

4. EPA / waste law

- Storage thresholds (outside the regulated Sydney/Newcastle/Wollongong area): 2,500 t on site or 12,000 t/yr. Shed scale is far below.
- Hazardous waste storage: licence triggered above 5 tonnes (cl 42(3)(a), amended 2023). Unknown whether damaged lithium batteries count; keep them minimal anyway.
- NSW e-Waste Bill 2025 (would have licensed >100 t/yr of e-waste): defeated 18 Sep 2025, not law.
- Not confirmed: thresholds for waste processing/recovery (dismantling). Ask EPA (131 555).

5. Product stewardship and fallback outlets

- NTCRS gives households and small businesses free recycling of TVs and computers via collection points; recyclers must be AS 5377 certified.
- MobileMuster for phones; B-cycle and council CRC for batteries.
- Whylandra is an NTCRS participant via DHL Drop Zone; business e-waste pricing unknown.